

CROSS-EXAMINATION – LYING OR MISTAKEN DEFENCE WITNESSES

General Objectives	PHASE 1 Clarification & Commitment	PHASE 2 Commitment & Puttage	PHASE 3 Attack & Dislocation	PHASE 4 Exploitation
KEEPING YOUR OBJECT ALWAYS IN MIND: Find and Expose the Truth of facts in issue, or relevant to facts in issue Elicit Facts which may be used to cross-examine other witnesses Cast Doubt upon the accuracy of other witnesses' testimony Cast Doubt upon the accuracy of the witness's testimony or his earlier accounts Put Prosecution Case to the witness	Gain concessions favourable to our case Establish facts for use in cross-examination—<u>Other Witnesses</u>:- <i>Who? What doing? Where? Called? Why called? When approached? What said? Why said? ...</i> Identify escape routes—commence closure <i>Commit witness to accounts in areas you will attack—tie him to details</i> <i>Hide your intent—BE INDIRECT</i> Identify inconsistencies between his various accounts:- Interviews, admissions, notes, documents, letters, complaints, testimony Identify inconsistencies between his accounts and facts established by:- Our witnesses, their witnesses, own knowledge, his actions before, during and after offence Tie witness to his various inconsistent accounts <i>LISTEN to his words—VISUALISE and TEST everything he says</i> <i>Constantly Apply “INNOCENT PERSON”/“HONEST WITNESS” TEST—Ask yourself “What should he have done at <u>every</u> stage? What did he do?”</i> Identify absurdities or weaknesses in logic and plausibility of his account(s) Reconsider:- <i>Is witness lying?—Where?—Why?—How to exploit?</i> <i>Is witness merely mistaken?—Where?—Why?</i> <i>Could witness be truthful and correct?</i> <i>Is Case Theory valid?—Does our case have real merit?</i>	Completely seal escape routes <i>Securely tie witness to details in areas to be attacked</i> <i>LISTEN—VISUALISE—TEST</i> <i>Reapply “INNOCENT PERSON”/“HONEST WITNESS” TEST—Think about his words/actions, compare them with those of the Innocent Person/ Honest Witness at all relevant times – <u>before, during and after</u> offence</i> <i>Help him dig a hole for himself and his mates—commit him to “facts” you will later use against him and them</i> Put prosecution case to witness Reconsider his motives for lying and/or reasons for mistake. Could he be truthful? Could he be correct?	Demonstrate witness's lies and mistakes <i>Leading questions about the contradictions, inconsistencies and absurdities in his various accounts</i> Attribute Motives For Lying: Love/friendship Loyalty/duty Guilt/fear Greed Hatred Attribute Reasons For Mistake: Defective observation Lack of care/attention/time Faulty eyesight/hearing Affected by: Confusion Fear Anger Alcohol or other drug Defective recollection No reason to remember No notes Effects of time elapsed Assumed NOT observed Adoption of others' accounts Reconstruction	Force concessions and admissions from witness <i>Strong leading questions to forcefully exploit most convincing or damaging point(s)</i> Leave the court with a clear picture of prosecution case <i>Succinctly put prosecution Case Theory to witness:</i> <i>How offence committed</i> <i>Why offence committed</i> <i>Consequences of offence</i>
CONSIDER: Whether to Cross-examine — Should there be any cross-examination at all? – Would a short/sharp attack suffice? Access to Information — Transcripts & statements (cross-referenced) – Criminal & other histories of witnesses – Exhibits – Photographs – Plans – Maps – Informant – Other sources				

Recording of Testimony — Notes taken by informant or other colleague – Computer – Audio recording – Adoption of notes for subsequent charges

Time Constraints — Adjournments for lunch/day – When should you resume examination? – When should you finish with witness?